



POLICE DEPARTMENT

December 22, 2023

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

Re: CCRB Case No. 202204404 (Incident Date: July 1, 2022) regarding Police Officer Christina O'Connor, Tax No. 939832 (DADS No. 2023-29488)

Dear Mr. Darche:

The Police Commissioner has reviewed the request for Charges and Specifications in connection with CCRB Case No. 202204404, pertaining to Police Officer Christina O'Connor. Having analyzed the facts and circumstances of this matter, the Police Commissioner has determined that pursuing Charges and Specifications against Police Officer O'Connor would be detrimental to the Police Department's disciplinary process.

While the Police Commissioner agrees with the CCRB's substantiation of the allegations in this matter, the Police Commissioner does not agree that charges and specifications are the appropriate form of penalty. After multiple instances of non-compliance from the complainant, Police Officer O'Connor pushed the complainant very quickly in an attempt to gain compliance, while also using profanity. The penalty days associated with the command discipline will reflect mitigated penalties, considering Police Officer O'Connor's positive, lengthy tenure with the Department and lack of any prior formal disciplinary history.

Therefore, as provided for within the 2012 Memorandum of Understanding between the CCRB and the Police Department, the Police Commissioner, in the interest of justice and to retain jurisdiction over this matter, intends to direct the issuance of a Schedule "A" Command Discipline.

COURTESY • PROFESSIONALISM • RESPECT

Website: <http://nyc.gov/nypd>

Sincerely,

A handwritten signature in black ink, appearing to read 'DC' followed by a stylized flourish that extends to the right.

Anthony S. Marino
Deputy Chief
Commanding Officer
Police Commissioner's Office



ERIC L. ADAMS
MAYOR

CIVILIAN COMPLAINT REVIEW BOARD
100 CHURCH STREET 10th FLOOR
NEW YORK, NEW YORK 10007 ♦ TELEPHONE (212) 912-7235
www.nyc.gov/ccrb



ARVA RICE
INTERIM CHAIR

December 26, 2023

The Honorable Edward Caban
Police Commissioner
New York City Police Department
One Police Plaza
New York, New York 10038

Re: CCRB v. PO Christina O'Connor
Disciplinary Case No.: 2023-29488

Dear Commissioner Caban:

I am writing in response to the letter from Deputy Chief Anthony S. Marino, dated December 22, 2023, informing the Civilian Complaint Review Board (hereinafter referred to as “CCRB”) of your intent to dismiss the Charges and Specifications against Police Officer O'Connor. Pursuant to Paragraph 2 of the April 2, 2012, Memorandum of Understanding (hereinafter referred to as the “MOU”) between CCRB and the New York City Police Department. I am responding to Deputy Chief Marino's notification.

Deputy Chief Marino stated that The Police Commissioner agrees with the CCRB's substantiation of the allegations on this matter but does not agree that Charges and Specifications are the appropriate form of penalty. The Police Commissioner further determined that PO O'Connor used force and spoke discourteously when she pushed § 87(2)(b) while using profanity.

NYPD Patrol Guide Procedure 221-02 stated that "When a member of the service must gain compliance, control, or custody of an uncooperative subject, the member should comply with Patrol Guide 221-01, “Force Guidelines” and: ... Utilize de-escalation techniques when appropriate and consistent with personal safety." The Mission and Values of the New York City Police Department, found in NYPD Patrol Guide Procedure 200-02, states that “The Department is committed to accomplishing its mission of protecting the lives and property of all citizens of New York City by treating every citizen with compassion, courtesy, professionalism, and respect...” Prior to pushing § 87(2)(b) PO O'Connor was releasing § 87(2)(b) from custody and escorting her out of the station house. PO O'Connor was not trying to gain compliance or custody of § 87(2)(b) since § 87(2)(b) was being released and thus the use of force was unnecessary. In addition, when PO O'Connor used profanity while pushing § 87(2)(b) PO O'Connor did not follow the mission, vision, or values of the

Department and her conduct was prejudicial to the good order, efficiency, and discipline of the Department.

While it is recognized that the Police Commissioner is the final arbiter regarding disciplinary actions against members of service, based upon the foregoing, it is respectfully requested that you permit CCRB to pursue Charges and Specifications against PO O'Connor in this matter.

Respectfully submitted,

Matthew Kadushin

Matthew Kadushin
Acting Executive Director
NYC Civilian Complaint Review Board



POLICE DEPARTMENT

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

December 27, 2023

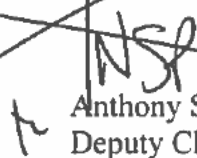
Re: CCRB Case No. 202204404 (Incident Date: July 1, 2022) regarding Police Officer Christina O'Connor, Tax No. 939832 (DADS No. 2023-29488)

Dear Mr. Darche:

The Police Commissioner has reviewed your letter, dated December 26, 2023, concerning the Civilian Complaint Review Board ("CCRB") case involving Police Officer Christina O'Connor, and nevertheless maintains that it would be detrimental to the Police Department's disciplinary process to allow the Civilian Complaint Review Board to continue its prosecution of Police Officer O'Connor for the reasons expressed in my December 22, 2023 letter.

Therefore, the Police Commissioner affirms his decision to exercise Provision Two of the Memorandum of Understanding and now directs that Police Officer O'Connor be issued a Schedule "A" Command Discipline for the substantiated discourtesy and force allegations.

Sincerely,


Anthony S. Marino
Deputy Chief
Commanding Officer
Police Commissioner's Office